TMPCAA015498

Tel.: 020 25530316/14/17
Fax : 25530319

B A N K O F I N D I A

PUNE LARGE CORPORATE BRANCH
1162/6,GROUND FLOOR,UNIVERSITY
ROAD,NEAR OBSERVATORY,
SHIVAJI NAGAR,PUNE-411005
MAHARASHTRA INDIA

To,

Date: 09-11-2018

SKODA AUTO INDIA PRIVATE LIMITED
A-1/1, SHENDRA FIVE STAR INDUSTRIAL AREA
MIDC, AURANGABAD - 431201
AURANGABAD
MAHARASHTRA
INDIA

Dear Sir/s,

Re : Our Guarantee No.	:	0540IPEBG180379
Dated	:	09-11-2018
Amount of Guarantee	:	INR 1389804.00
Issued in your favour on Account of	:	M/S NIHVA TECHNOLOGIES PVT LTD ON BEHALF OF THE COSMOS COOP BANK LTD
Purpose of Guarantee	:	
Guarantee valid upto	:	31-12-2018
with claim period of	:	1 Month/s and 0 Days.

We refer to your letter No._____ dated _____

We hereby confirm having executed the captioned Bank Guarantee in your favour.

The signatories to the Bank guarantee are jointly empowered, to execute the guarantee on behalf of the Bank.

Yours faithfully,

Chief Manager

बैंक ऑफ इंडिया Pune Large Corporate Br. BANK OF INDIA

भारतीय गैर न्यायिक

एक सौ रुपये Rs. 100

रु. 100 ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◐ 2018 ◐ TZ 216215

5 NOV 2018

अनु.क्र. ..... दि. ..... मु.शु.रकम-१०० /—

दस्ताचा प्रकार ..... B.G .....

दस्त नोंदणी करणार आहेत का? होय / नाही

मिळकतीचे वर्णन .....

मुद्रांक विकत घेणाऱ्याचे नांव ..... Nibva Tech. Pvt. Ltd

पत्ता ..... Chinchwad Pune

दुसऱ्या पक्षकाराचे नांव ..... BOI

इतर व्यक्तीचे नांव व पत्ता ..... Deepak Eshtc

मुद्रांक विकत घेणाऱ्याची सही

श्री विश्वरूप रामचंद्र जाधव
परवाना क्र. २२०१९५१
प्लॉट नं.१००, से.नं.१८, मुकेनगर
चिंचवड, पुणे - १९

- 2 NOV 2018

प्रथम मुद्रांक लिपीक
कोषागार पुणे कचेरी

BOI 903 BG2191819

0540 I P E B G 1 8 0 3 7 9

9 NOV 2018

Bank Guarantee

To

Skoda Auto India Private Limited

A-1/1, Shendra Five Star Industrial Area

MIDC, Aurangabad - 431201

BANK OF INDIA Pune Large Corporate Br.

भारतीय गैर न्यायिक

एक सौ रुपये Rs. 100

रु. 100 ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◐ 2018 ◐ TZ 216216

5 NOV 2018

अनु.क्र. ..... दि. ..... मु.शु.रकम-१००/-

दस्ताचा प्रकार ..... BG .....

दस्त नोंदणी करणार आहेत का? होय / नाही

मिळकतीचे वर्णन .....

मुद्रांक विक्री घेणाऱ्याचे नांव Nihva Tech. Pvt. Ltd

पत्ता Chinchwad Pune

दुसऱ्या पक्षकाराचे नांव BOI

हस्ते व्यक्तीचे नांव व पत्ता Deepak Ishte

मुद्रांक विक्री घेणाऱ्याची सही

श्री विश्वरूप रामचंद्र जाधव
परवाना क्र. २२०१९५१
प्लॉट नं.५००, से. नं.१८, फुलेनगर
चिंचवड, पुणे - ११

वरिष्ठ कोषागार अधिकारी पुणे

- 2 NOV 2018

प्रथम मुद्रांक लिपीक
कोषागार पुणे वरिष्ठ

BOI 903BG2191819

0540 I P E B G 1 8 0 3 7 9

9 NOV 2018

Dear Sir,

Guarantee No.

Amount of Guarantee Rs.13,89,804.00

(Rs. Thirteen Lakh Eighty- Nine Thousand Eight Hundred Four only)

BANK OF INDIA

BOI 903BG2191819

IPEBG1803879

9 NOV 2018

Guarantee Cover from
Date of Guarantee Expiry 31st– Dec-2018
Last date of lodging claim 31st –Jan-2019
Issued at the request of

This deed of on demand guarantee is made / executed on for valuable consideration received by Bank of India having registered Office at Star House, C5/G Block, Bandra Kurla Complex, Bandra East, Mumbai 400051 and its Branch Pune Large Corporate Branch, at Ground Floor, 1162/6, University Road, Besides Deccan Multispeciality Hardikar Hospital, Shivajinagar, Pune 411005(hereinafter referred to as The Bank which expression shall include its successors, administrators and permitted assigns), in favor of Skoda Auto India Private Limited, a company incorporated under the Companies Act, 1956 and having its Registered Office at A-1/1, Shendra Five Star Industrial Area, MIDC, Aurangabad – 431201 Maharashtra (herein after referred to as SAIPL which expression shall include its successors, administrators and permitted assigns) for an amount not exceeding Rs.13,89,804.00 (Rs.Thirteen Lakh Eighty-Nine Thousand Eight Hundred Four only) at the request of M/s NIHVA TECHNOLOGIES PVT LTD Registered Office at – 8/1 Coromant HSG Society Sector 27 Nigdi Pradhikaran Pune 411044 (herein after referred to as the Debtor, which expression shall include its successors, executors, administrators and permitted assigns) as the case may provide as follows:

1. In consideration of SAIPL having transactions with the debtor, the debtor furnishes a deed of guarantee as herein provided for Rs.13,89,804.00 (Rs. Thirteen Lakh Eighty-Nine Thousand Eight Hundred Four only) from a nationalized Bank towards full and satisfactory payment of any money due by the debtor to SAIPL and / or any claim that SAIPL has in relation to the sale of spare parts, accessories and tools ,and / or towards full and satisfactory performance of all the terms and conditions of any agreement between debtor and SAIPL, we, The Bank, do hereby unconditionally, irrevocably, and without any reservation or qualifications or conditions whatsoever, forthwith and without any demur or delay and notwithstanding any intimation and / or direction by the debtor to the contrary or notwithstanding any dispute between SAIPL and the debtor, hereby guarantee, agree and undertake to pay SAIPL on demand, a sum to the extent of

BANK OF INDIA Pune Large Corporate Br.

BOI903BG219189

0540 I P E B G 1 8 0 3 7 9

9 NOV 2018

Rs.13,89,804.00 (Rs. Thirteen Lakh Eighty-Nine Thousand Eight Hundred Four only) The Bank further agrees to indemnify and keep indemnified SAIPL, from time to time to the extent of aforesaid amount, against any loss, damages, costs, charges and expenses suffered by or likely to be suffered by SAIPL by reason of any breach or breaches by the said debtor of terms and conditions of any agreement between SAIPL and the debtor. The decision of SAIPL in this regard shall be final, conclusive and binding on the Bank. We the Bank further undertake to unconditionally pay SAIPL, the amount claimed merely upon the first written demand without any further enquiry or intimation from/to the debtor and without any reference / recourse to the Debtor and without demur or any delay to the extent aforesaid.

2. We the Bank further agree that SAIPL shall be the sole judge so as to whether the debtor owes any money to SAIPL and as to whether debtor has committed any default or breaches of any terms as to the amount or amounts of moneys owed by the debtor to SAIPL or the amount of loss, damage, costs, charges and expenses caused to or suffered by or that may be caused to or suffered by SAIPL from time to time and agree that any demand or demands made under this guarantee against the Bank shall be final and binding on the Bank.

3. The Bank hereby further agrees that SAIPL may make one or more such demands in parts on the Bank at different points of time and the Bank hereby undertakes to pay to SAIPL without demur the sum or sums of money so demanded, howsoever that the aggregate liability of the Bank under this guarantee shall not exceed Rs.13,89,804.00 (Rs. Thirteen Lakh Eighty-Nine Thousand Eight Hundred Four only)
We the Bank further agree that the guarantee herein contained shall remain in full force and effect till all the dues and claims of SAIPL have been fully paid, satisfied and discharged and till SAIPL certifies in writing that all the dues and claims of SAIPL from the debtor have been fully paid and satisfied. However this guarantee expires on 31-12-2018 though claim can be lodged with the Bank before 31.01.2019 in consonance with Article 13 below

4. We, the Bank further agree that notwithstanding any demand or demands made by SAIPL on the Bank and the payment and payments made there against by the Bank to SAIPL this guarantee

Pune Lane Corporate Br. BANK OF INDIA

BOI 903BG2191819

IPEBG1803479

- 9 NOV 2018

shall be a continuing guarantee to the extent of the remaining amount of the guarantee, however this guarantee expires on 31st Dec 2018 though claim can be lodged with the Bank before 31.01.2019 in consonance with Article 13 below.

5. We, the Bank also agree that SAIPL shall have the fullest liberty, without affecting in any way the liability on the Bank under this guarantee, to vary from time to time any of the terms and conditions of any agreement including but not limited to the Letter of intent (LOI) and Dealer Agreement signed between SAIPL and the debtor or to extend time of performance or payment or to postpone for any time. SAIPL may from time to time exercise its rights/powers against the Debtor to either enforce or forebear from enforcing any of the terms and conditions of any agreement or securities available to SAIPL and the said Bank shall not be released from its liability, even to the slightest extent under these by any exercise by SAIPL of its liberty with reference to the matter aforesaid for by reason of time being given to the debtor or any other forbearance, act or omission on the part of SAIPL or any indulgence by SAIPL on the debtor or any other matter or thing what so ever which under the law relating to the security would but for this provision have the effect of so releasing the Bank from its liability.

6. We, the Bank agree and shall have no objection whatsoever to SAIPL making demand or demands on the Bank or proceeding against the Bank as if the Bank is the principal debtor (notwithstanding M/s NIHVA TECHNOLOGIES PVT LTD being called a debtor under this guarantee) without first making a demand against the debtor and proceeding against the debtor and the guarantee herein contained shall be enforceable against the Bank notwithstanding that any security which SAIPL may have obtained from the debtor has remained unrealized or outstanding at the time when proceedings are taken against the Bank.

7. We, the Bank hereby undertake to pay to SAIPL any money or moneys so demanded by SAIPL notwithstanding any dispute or disputes raised by the Debtor in legal proceeding before any court or tribunal or any authority, the liability of the Bank under this present being absolute and unequivocal.

Bank of India Pune Large Corporate Br.

BOI 903BG2191819

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9 NOV 2018

8. We, the Bank undertake not to revoke this guarantee during its currency except with the previous consent of SAIPL in writing and agree that any change in the constitution of the debtor or the Bank or SAIPL shall not discharge our liability there under.

9. We, the Bank agree that any claim or demand under this guarantee by SAIPL may be made either by hand delivery or registered post or a courier addressed to the Bank office at Pune Large Corporate Branch, Ground Floor, 1162/6, University Road, Besides Deccan Multispeciality Hardikar Hospital, Shivajinagar, Pune 411005 the time when it would be normally be received after the posting or courier thereof and shall be sufficient if signed by any of the official of SAIPL or their advocates.

10. All expenses incurred in this Bank Guarantee shall be charged to Debtor.

11. We, the Bank agree that this guarantee shall be subject to the sole and exclusive jurisdiction of the competent courts at Pune only.

12. SAIPL may obtain a confirmation of issuance of this Bank Guarantee from The General Manager, Bank of India, Head Office, C&IC Department, "G Block", Bandra Kurla Complex, Bandra (E), Mumbai 400051.

13. Notwithstanding anything contained hereinabove– Our liability under this Bank Guarantee shall not exceed of Rs.13,89,804.00 (Rs. Thirteen Lakh Eighty-Nine Thousand Eight Hundred Four only) This Bank Guarantee shall be valid up to 31st-Dec-2018. We are liable to pay the guaranteed amount or part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand before 31-Jan-2019. The Bank Guarantee should be returned to us after the expiry date for cancellation purpose, even if the original guarantee is not returned, our liability on this guarantee ceased to exist. Notwithstanding anything contrary contained in any law for the time being in force or banking practice, this guarantee shall not be assignable or transferable by the beneficiary. Notice or invocation by any person such as assignee, transferee or agent of beneficiary shall not be entertained by the bank. Any invocation of guarantee can be made only by the beneficiary.

Pune Large Corporate Br. BANK OF INDIA

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14 Notwithstanding anything contained hereinabove Our liability under this Guarantee is restricted to Rs.13,89,804.00 (Rs. Thirteen Lakh Eighty-Nine Thousand Eight Hundred Four only) And This Guarantee is valid up to 31-12-2018 and we shall be released and discharged from all liabilities hereunder unless a written claim for payment under this guarantee is lodged on us on or before 31-01-2019 irrespective of whether or not the original guarantee is returned to us.

बैंक ऑफ इंडिया Pune Large Corporate Br. BANK OF INDIA

A

कृते बैंक ऑफ इंडिया
For BANK OF INDIA
Amardeep Kumar 201636
प्राधिकृत हस्ताक्षर / Authorised Signatory
पुणे लार्ज कार्पोरेट शाखा
Pune Large Corporate Br.

कृते बैंक ऑफ इंडिया
For BANK OF INDIA
प्राधिकृत हस्ताक्षर / Authorised Signatory
पुणे लार्ज कार्पोरेट शाखा
Pune Large Corporate Br.

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